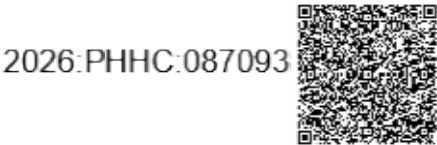


102



IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CRM-M-33241-2026
Decided On: 09.06.2026

PAWAN KUMAR
....PETITIONER(S)

VERSUS

STATE OF HARYANA
....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. Ram Dass, Advocate and
Mr. Hawa Singh, Advocate for the petitioner

SANDEEP MOUDGIL, J. (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No.38 dated 31.03.2026 under Sections 318 (4), 61 of BNS Act, 2023 registered at Police Station Karnal, District Karnal.

2. Contention

On behalf of the petitioner

Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case. It is contended that the petitioner was not an employee of the complainant, but merely acted as a commission agent who used to refer customers to the complainant's shop, against which the

complainant used to pay commission to the petitioner through online transactions.

It is further submitted that no salary slips or other documentary proof of employment have been produced by the complainant. It is also contended that no report from the Cyber Police has been placed on record explaining the basis for freezing the complainant's account. The petitioner further submits that he is ready and willing to join the investigation and cooperate fully with the same.

Notice of motion.

On behalf of the State

On the asking of the Court, Ms. Mayuri Lakhanpal Kalia, DAG Haryana accepts notice on behalf of the respondent-State and vehemently opposes the prayer made by learned counsel for the petitioner on the ground that the petitioner is involved in offences of a serious nature.

It is submitted that the petitioner was an employee of the complainant and was also receiving commission for facilitating sales. It is further contended that the petitioner was using a mobile phone linked to the complainant's firm account, and that illegal transactions have been carried out through the said phone, which had been provided to the petitioner by the complainant.

3. Analysis

Having heard learned counsel for the parties and perused the record, this Court finds that the dispute between the parties primarily pertains to allegations arising out of business and financial transactions. The respective versions put forth by both sides raise disputed questions of fact, which are yet to be established during investigation.

It further appears that the petitioner's role is essentially based on documentary and electronic evidence, which is already within the possession of the investigating agency. No custodial interrogation appears to be necessary at this stage.

The petitioner has further undertaken in para 9 of the present petition that he is ready and willing to join the investigation and shall fully cooperate in its furtherance. Therefore, this Court finds no reason to decline the present petition.

4. Relief:-

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to his satisfaction. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

'When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.'

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

09.06.2026

NainaRajput

Whether speaking/reasoned : *Yes/No*

Whether reportable : *Yes/No*